

		Plaintiff Commercewest Bank's motions to compel defendants to respond to Form Interrogatories, Set One, and Special Interrogatories, Set One, are GRANTED. (Code Civ. Proc., § 2030.290.) Defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai, shall each provide full, complete, and verified responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, without objection, within 15 days. Plaintiff Commercewest Bank's motion to compel defendants to respond to Requests for Production, Set One, is GRANTED. (Code Civ. Proc., § 2031.300.) Defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai, shall each provide full, complete, and verified responses to Requests for Production, Set One, without objection, and shall provide all responsive documents in their possession, custody, and/or control, without objection, within 15 days. Plaintiff Commercewest Bank's motions to deem Requests for Admission, Set One, as admitted is GRANTED. (Code Civ. Proc., § 2033.280.) The Court orders that Requests for Admissions, Set One, are each deemed admitted as to defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai. Plaintiff's sanctions requests are DENIED, as the notices of motion do not comply with Code Civ. Proc., § 2023.040. Moving party shall give notice.
3	Lee vs. Mercedes-Benz USA, LLC. 2023-01316486	Motion to Compel Arbitration Defendant Mercedes-Benz USA, LLC's ["MBUSA"] to Compel Arbitration is DENIED. Defendant contends that plaintiff John Lee's claims for breach of warranty are subject to the arbitration under an arbitration provision in the California Motor Vehicle Lease Agreement ["Lease"] between Lee and non-party dealership, Fletcher Jones Motor Cars, Inc. On May 29, 2021, plaintiff executed the Leas with Fletcher Jones. The Lease included a half-page

		arbitration clause, entitled "Important Arbitration Disclosures." which stated as item 1, If either you or we choose, any dispute between you and us will be decided by arbitration and not in court." [Ameripour Declaration, Ex. 2] The Lease identified Plaintiff as the "Lessee" and "you", Fletcher Jones was identified as the "Lessor" and referred to as "we" and "us." Defendant was not a party to the Lease. The Lease³ also provided, in relevant part, that: Any claim or dispute [. . .] between you and us or our employees, agents, successors or assigns, which arises out of or relates to A credit application, this lease, or any resulting transaction or relationship arising out of this lease, shall, at the election of either you or us, or our successors or assigns, be resolved by neutral, binding arbitration and not by a court action. [Ex. 3] The general rule is that "one must be a party to an arbitration agreement to be bound by it or invoke it." [DMS Services., Inc. v. Superior Court (2012) 205 Cal.App.4th 1346, 135, internal quotes and citation omitted] Courts have recognized limited exceptions to this general rule: "there are six theories by which a nonsignatory may be bound to arbitrate: (a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary." [Young Seok Suh v. Superior Court (2010) 181 Cal.App.4th 1504, 1513] In other words, nonsignatories to a contract may enforce a contractual arbitration provision where there is a sufficient agency or identity between the signatories and nonsignatory. [See Molecular Analytical Systems v. Ciphergen Biosystems, Inc. (2010) 186 Cal.App.4th 696, 715 ["the claims against the nonsignatory were dependent upon, or inextricably bound up with, the obligations imposed by the contract Under the doctrine of equitable estoppel, if a plaintiff relies on the terms of an agreement to assert his or her claims against a nonsignatory defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause of that very agreement"]; [Nguyen v. Tran (2007) 157 Cal.App.4th 1032, 1036–1037] There is a split in the appellate decisions as to whether an arbitration clause in a Lease such as the one in this case, can be enforced by a non-signatory car manufacturer under the doctrines of third party beneficiary and equitable estoppel. [See Felisilda v. FCA US LLC (2020) 53 Cal.App.5th 486, 495; I2023) 89 Cal.App.5th 1324, 1334; Montemayor v. Ford Motor
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		Company (2013) 92 Cal.App.5th 958 and Kielar v. Superior Court (2023) 2032 WL 5270559] Accordingly, this Court must make a choice between the conflicting opinions. [Auto Equity Sales, Inc. v. Superior Court (1962) 57 Cal.2d 450, 456] Montemayor and Kielar are the most recent appellate decisions and discussed both Felisilda and Ford Motor Company. This Court follows Montemayor and Kielar and their reasoning. Their reasoning equally applies to this case. Plaintiff's request for judicial notice is granted Accordingly, the motion to compel arbitration is denied. Plaintiff shall give notice.
4	Sheikholeslami vs. General Motors, LLC 2021-01223844	Motion to Compel Production Plaintiff Bahar Shikholesami's Motion to Compel Further Responses to Plaintiff's Inspection demands, set No. is GRANTED in part, CONTINUED in part, and DENIED in part. (See Code Civ. Proc. § 2031.310) The motion is denied as to Categories No. 72 & 73. The hearing of the motion is continued to January 26, 2024 at 9:30 AM, as to Category No. 56. Defendant to produce a privilege log, For each withheld document or redaction, the privilege log must state at least its date, sender/author, addressee/recipient, and the general subject matter, along with any other information needed to establish the ground for withholding or redacting. (See Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 291-292; Wellpoint Healthcare Networks, Inc. v. Superior Court (1997) 59 Cal.App.4th 110, 129-130.) "The party claiming the privilege has the burden to show that the communication sought to be suppressed falls within the terms of the claimed privilege." (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1619.) The privilege log to be served within 15 days. Each party may file a supplemental brief, not to exceed 7 pages, solely as to issues in the privilege log, which